International Law
LAWS2000 & LAWS8015

WEEK 9: USE OF FORCE

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THIS WEEK

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Part A

- **A brief history**
- **The UN Charter framework on the use of force**
- **Unilateral use of force: self-defence**

Part B

- **The role of the UN Security Council and use of force**
- **Humanitarian intervention and 'Responsibility to Protect'**

PART A

Use of Force

- A brief history
- The UN Charter framework on the use of force
- Unilateral use of force: self-defence

Brief historical overview

Just War Doctrine

Thomas Aquinas (13th century) => setting out three conditions for a war to be just:

- **Auctoritas**: the right authority (by the rightful sovereign)
- **Causa justa**: a just purpose (not the pursuit of wealth or power)
- **Recta intentio**: the right intent (attainment of a just peace)

Efforts to limit to right to war in contemporary history

- The Hague Conventions in 1899 and 1907 (but then WWI)
- The League of Nations (1920-1945)
- Kellogg-Briand Pact (1928): outlawing war as a means of national policy, except for self-defence (but then WWII)

Jus ad Bellum and Jus in Bello

Jus ad Bellum

The law relating to the resort to force and war

Jus in Bello

The laws regulating behaviour during hostilities



- ✓ This lecture discusses *jus ad bellum*
- ✓ *Jus in bello* is addressed in Law of Armed Conflict (LAWS5087) or international humanitarian law

The UN Charter Framework

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Reflective of the experiences of World War II

UN Charter (1945) Preamble

'We the peoples of the United Nations determined to save succeeding generations from the scourge of war'

Two pillars approach

Article 2 (3)

All Members shall settle their international disputes by **peaceful means** in such a manner that international peace and security, and justice, are not endangered.

Article 2 (4)

All Members shall **refrain in their international relations from the threat or use of force** against the territorial integrity or political independence of any state, or in any other manner inconsistent with the Purposes of the United Nations.

The UN Charter Framework

The Prohibition on the Use of Force and Customary International Law

Nicaragua Case

> *'[t]here can be no doubt that the issues of the use of force…are issues which are regulated both by customary international law and by treaties, in particular by the United Nations Charter'*

Case Concerning Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America), Merits, (1986) ICJ Reports 14, para 34.

➔ Jus Cogens norm

The UN Charter Framework

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Relevant UN General Assembly resolutions on the use of force

- ➔ **Declaration on Principles of International Law concerning Friendly Relations and Cooperation among States in accordance with the Charter of the United Nations** (1970)
- ➔ ***Definition of Aggression*** (1974)
- ➔ ***Declaration on the Enhancement of the Effectiveness of the Principle of Refraining from the Threat or Use of Force in International Relations*** (1987)

The UN Charter – Article 2(4)

Article 2 (4)

All Members shall **refrain in their international relations from the threat or use of force** against the territorial integrity or political independence of any state, or in any other manner inconsistent with the Purposes of the United Nations.'

"**in their international relations**"

This provision does not cover, in principle, the threat or use of force by states internally on their own territory

! But distinction between inter- and intra-state force/conflict not always clear, e.g. Korean or Vietnam wars, and violent disintegration of the former Yugoslavia (1990s)

Meaning of ‘Threat or Use of Force’

Article not limited to the actual use of force, but also *threat* of force.

> If the envisaged use of force is itself unlawful, the stated readiness to use it would be a threat prohibited under Article 2, paragraph 4...The notions of ‘threat’ and ‘use’ of force under Article 2, paragraph 4, of the Charter stand together in the sense that if the use of force itself in a given case is illegal for whatever reason the threat to use such force will likewise be illegal. In short, if it is to be lawful, the declared readiness of a State to use force must be a use of force that is in conformity with the Charter.

Legality of the Threat or Use of Nuclear Weapons, Advisory Opinion (1996) ICJ Reports 226, para. 47.

Meaning of ‘Threat or Use of Force’

- Explicit or implicit
- By one state toward another state or group of states.
- Not all political rhetoric is seen as a violation of Art. 2(4) (*Nuclear Weapons* Advisory Opinion (paras 47-48))

    - Reasonably specific: mentions that force will be used if certain events occur
    - ‘Declared readiness of a State to use force’
    - Necessitate a credible intention

Meaning of ‘Threat or Use of Force’

- Traditionally, a narrow understanding: the use of military or armed force, although divide among states over whether the meaning of “force” might also include economic force or coercion (e.g., sanctions, boycotts or embargoes)

- In more recent years, discussion of ‘cyber attacks’ has gained prominence,

⇒International Law Association (ILA) 2018 report (iLearn):

  - Art. 2(4) generally refers to use of ‘armed’ or ‘physical’ force
  - Cyber operations may constitute a use of force if their scale and effects are similar to kinetic force (e.g., destruction of physical infrastructure or loss of life)

⇒See also, 2021 Report of the Group of Governmental Experts on Advancing responsible state behaviour in cyberspace in the context of international security (A/76/135)

Use of Force 'Against the Territorial Integrity and Political Independence…'

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Debates as to whether the use of force is permitted if it does not violate 'territorial integrity or political independence', e.g., use of force temporarily and in a limited way.

Generally, such restrictive reading of Art. 2(4) – without consent of the state – is rejected (see also ICJ rulings, for instance in *Corfu Channel* case or *Nicaragua* case, and ILA 2018 report)

Use of force to protect/rescue nationals

=> frequently practiced by militarily powerful states (US, UK, France, Israel, etc.) => also used by Russia as justification for intervention in Georgia (2008) and Ukraine (2014, 2022).

Use of force to promote democracy or to further self-determination

More contentious

(e.g., in the context of decolonisation)

Invitation

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Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America), ICJ 1986

> As the Court has stated, the principle of non-intervention derives from customary international law. It would certainly lose its effectiveness as a principle of law if intervention were to be justified by a mere request for assistance made by an opposition group in another State - supposing such a request to have actually been made by an opposition to the régime in Nicaragua in this instance. Indeed, it is difficult to see what would remain of the principle of non-intervention in international law if intervention. which is already allowable at the request of the government of a State, were also to be allowed at the request of the opposition.

Exceptions to the Prohibition to Use Force

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Authorised by UN Security Council

Article 42

Should the Security Council consider that measures provided for in Article 41 would be inadequate or have proved to be inadequate, it may take such action by air, sea, or land forces as may be necessary to maintain or restore international peace and security. Such action may include demonstrations, blockade, and other operations by air, sea, or land forces of Members of the United Nations.

Self-defence

Article 51

Nothing in the present Charter shall impair the inherent right of individual or collective self-defence if an **armed attack** occurs against a Member of the United Nations, until the Security Council has taken measures necessary to maintain international peace and security. Measures taken by Members in the exercise of this right of self-defence shall be immediately reported to the Security Council…

Self-Defence

Purpose/aim

The acts taken in self-defence must be for the purpose of fending off current persistent attacks (or preventing further attacks); and must be for the purpose of the restoration of the status quo ante bellum

Self-defence: general conditions

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✓Debate as to whether right to self-defence is a wide or narrow right.

✓Important, as it is common for states against which accusations of aggression are levelled to assert that their use of force was a lawful act of self-defence.

⇒Right to self-defence is to be interpreted in a manner that allows states to protect themselves from armed attacks, without becoming a pretext for unwarranted uses of force

Conditions on the excercise of self-defence

- ✓Only permitted in response to an 'armed attack'
- ✓Must be 'necessary and proportionate'
- ✓Must be reported to the UN Security Council

Meaning of ‘Armed Attack’

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Trigger for exercise of right to self-defence

! The meaning of ‘armed attack’ under Art. 51 is not synonymous with meaning of ‘use of force’ under Art. 2(4).

Attack on territory e.g. attacks on military vessels can also constitute an armed attack, but not attacks on private ships (ICJ *Oil Platforms Case*, 2003)

There is no clear benchmark for armed attacks. Threshold generally depends on ‘scale and effects’ (casualties, damage to property, etc.)

ICJ *Nicaragua Case*

***Case concerning Military and Paramilitary Activities in and against Nicaragua (Nicaragua v United States of America)* (Judgment) [1986] ICJ Rep 14**

Facts: Coup d'etat against Somoza dictatorship by socialist Sandinista movement in Nicaragua in the context of Cold War => US terminated aid and began arming and supporting anti-Sandinista forces ('Contras').

➔Nicaragua argued before the ICJ that armed attacks had taken place, and training and arming paramilitary actions against the state violated int. law.

ICJ ruling: upheld the right to self-defence as customary international law

- ✓ Found that US had been involved in 'unlawful use of force', including when mining Nicaragua's territorial waters and attacking naval and port facilitaties.
- ✓ However, distinguished 'the most grave forms of the use of force (those constituting an armed attack) from other less grave forms', i.e. not every use of force amounts to an armed attack => **scale and effects**
- ✓ Certain 'frontier incidents' as well as provision of arms, funds or logistical support to armed groups remain below the gravity threshold ➔ significant government involvement is required (i.e. 'effective control' over any operations) to meet gravity threshold under Art. 51

Necessity and Proportionality

Necessity

State must have no other means of halting the armed attack other than recourse to use of force => that is, if the state is able to achieve the same result without resorting to force, there is no justification for self-defence (i.e., self-defence as a measure of last resort).

Proportionality

2 approaches:

1- Defensive action must be commensurate with the armed attack

2- Defensive actions measured against the broader effects of the armed attack (e.g., not always equivalent to armed attack but balanced against the purpose, i.e., halting or preventing further attack)

=> depends very much on the facts and circumstances of each case including

Not explicitly stated in Art. 51, confirmed by ICJ in *Nicaragua* case as part of customary international law

Necessity and Proportionality in Practice

Necessity indicator (example)

Temporal link

Nicaragua [237]
'[…] these [defensive] measures were only taken, and began to produce their effects, several months after the [alleged armed attack]. Thus it was possible to eliminate the main danger […] without [using force]. Accordingly, it cannot be held that these activities were undertaken in the light of necessity.'

Proportionality indicators (examples)

Destructive scope:

Oil Platforms (Islamic Republic of Iran v United States of America) (Merits) [2006] ICJ Rep 161, 198 [77]
'As to the requirement of proportionality, […] the Court cannot assess in isolation the proportionality of [the] action to the attack to which it was said to be a response; it cannot close its eyes to the scale of the whole operation […]'.

Geographical Scope:

Armed Activities on the Territory of the Congo (Democratic Republic of the Congo v Uganda) (Judgment) [2005] ICJ Rep 168, 223 [147]:
'The Court cannot fail to observe […] that the taking of airports and towns many hundreds of kilometres from Uganda's border would not seem proportionate to the series of transborder attacks it claimed had given rise to the right of self-defence, nor to be necessary to that end.'

PART B

Use of Force

- Unilateral use of force: self-defence (cont'd)
- The role of the UN Security Council and use of force
- Humanitarian intervention and 'Responsibility to Protect'

‘Armed attack’ and non-state actors

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Does the armed attack have to be attributable to a state?

➔ Nicaragua ICJ: armed bands, groups, irregulars, mercenaries

➔ Question of extraterritorial non-state actors prominently raised by terrorist attacks by Al Qaida in the US in September 2001.

➔ UN Security Council affirmed right to self-defence.

UN Security Council Resolution 1373 (2001)

The Security Council,

Reaffirming its resolutions 1269 (1999) of 19 October 1999 and 1368 (2001) of 12 September 2001,

Reaffirming also its unequivocal condemnation of the terrorist attacks which took place in New York, Washington, D.C. and Pennsylvania on 11 September 2001, and expressing its determination to prevent all such acts,

Reaffirming further that such acts, like any act of international terrorism, constitute a threat to international peace and security,

Reaffirming the inherent right of individual or collective self-defence as recognized by the Charter of the United Nations as reiterated in resolution 1368 (2001),

‘Armed attack’ and non-state actors

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Can states invoke the right to self-defence, even if this means violating the territorial integrity of another state?

✓Increasing state practice of invoking self-defence in response to attacks by non-state actors, e.g., Western states against Islamic State and Turkish actions against Kurdish organisations in Syria.

✓ICJ: attribution to host state important (Wall Advisory Opinion 2004, Armed Activities Case 2005)

✓Some argue action can be taken if host state is ‘unwilling or unable’ to deal with terrorist threat within its borders ➔ but this doctrine remains controversial (e.g.,Turkey v PKK in Iraq.)

✓ Less contentious if action/intervention invited by affected state

Anticipatory or pre-emptory self-defence

Right to self-defence under Art. 51 triggered 'if an armed attack *occurs*' => But what about anticipatory self-defence if an attack has not yet occurred but is imminent?

Serious controversy between proponents arguing that anticipatory, unilateral self-defence constitutes customary international law, and those rejecting it as incompatible with strict wording of Art. 51

US National Security Strategy 2002

The United States has long maintained the option of preemptive actions to counter a sufficient threat to our national security. The greater the threat, the greater is the risk of inaction— and the more compelling the case for taking anticipatory action to defend ourselves, even if uncertainty remains as to the time and place of the enemy's attack. **To forestall or prevent such hostile acts by our adversaries, the United States will, if necessary, act preemptively.**

➔Little support for expanded definition in the US 'War on Terror' post 9/11 (George W. Bush administration)

Anticipatory or pre-emptory self-defence

Right to self-defence under Art. 51 triggered 'if an armed attack *occurs*' => But what about anticipatory self-defence if an attack has not yet occurred but is imminent?

➔Serious controversy between proponents arguing that anticipatory, unilateral self-defence constitutes customary international law, and those rejecting it as incompatible with strict wording of Art. 51

➔Little support for expanded definition in the US 'War on Terror' post 9/11 (George W. Bush administration)

➔More support if a specific attack is **manifestly imminent** (and in any case all other restrictions apply)

➔Ongoing debate in light of modern technologies that allow launching attacks with high speed and great destructive potential

Must report to UN Security Council

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States must report measures taken in the exercise of the right of self-defence *immediately* to the UN Security Council

UN Charter, Article 51

"Nothing in the present Charter shall impair the inherent right of individual or collective self-defence if an armed attack occurs against a Member of the United Nations, until the Security Council has taken measures necessary to maintain international peace and security. Measures taken by Members in the exercise of this right of self-defence shall be **immediately reported to the Security Council** and shall not in any way affect the authority and responsibility of the Security Council under the present Charter to take at any time such action as it deems necessary in order to maintain or restore international peace and security."

The UN Security Council

UN Charter, Article 24

(1) In order to ensure prompt and effective action by the United Nations, its Members confer on the Security Council primary responsibility for the maintenance of international peace and security, and agree that in carrying out its duties under this responsibility the Security Council acts on their behalf.

(2) In discharging these duties the Security Council shall act in accordance with the Purposes and Principles of the United Nations. The specific powers granted to the Security Council for the discharge of these duties are laid down in Chapters VI, VII, VIII, and XII.

Chapter VII of the UN Charter lays down the UN Security Council's powers with respect to threats to peace, breaches of the peace, and acts of aggression

⇒ Further discussed in Lecture 11 on Collective Security

⇒ Here focus on unilateral use of force without Security Council mandate

Humanitarian Intervention

Use of force to protect people in another state from gross and systematic human rights violations not addressed in the UN Charter

$\Rightarrow$ appears to be in conflict with the general prohibition in Art. 2(4)

- Debate on such 'humanitarian interventions' came to the fore during the 1990s => many new cases demanding global attention in the context of renewed interventionism after the end of the Cold War

Prominent failures to protect:

- Rwandan genocide in 1994
- UN inability to halt the massacre in Srebrenica in Bosnia in 1995

NATO's intervention in Kosovo (1999)

HUMANITARIAN CATASTROPHE IN KOSOVO



'The action being taken is legal. It is justified as an exceptional measure to prevent an overwhelming humanitarian catastrophe… Every means short of force has been tried. In these circumstances, and as an exceptional measure on grounds of overwhelming humanitarian necessity, military intervention is legally justifiable. The force now being used is directed exclusively to averting a humanitarian catastrophe and is the minimum necessary for that purpose.' UK Permanent Representative to the UN.

UNITED NATIONS

S

Security Council

Distr.
GENERAL

S/1999/328
26 March 1999
ENGLISH
ORIGINAL: ENGLISH AND RUSSIAN

Belarus, India and Russian Federation: draft resolution

The Security Council,

Recalling its primary responsibility under the United Nations Charter for the maintenance of international peace and security,

Deeply concerned that the North Atlantic Treaty Organization (NATO) used military force against the Federal Republic of Yugoslavia without the authorization by the Council,

Affirming that such unilateral use of force constitutes a flagrant violation of the United Nations Charter, in particular Articles 2 (4), 24 and 53,

Recognizing that the ban by NATO of civil flights in the airspace of a number of countries in the region constitutes a flagrant violation of the principle of complete and exclusive sovereignty of every State over the airspace above its territory in accordance with article 1 of the Chicago Convention on International Civil Aviation,

Recalling all its relevant resolutions and decisions, in particular the Statement of its President of 29 January 1999 (S/PRST/1999/5), in which it, inter alia, expressed the intention to be informed by members of the Contact Group about the progress reached in the negotiations on a political settlement of the situation in Kosovo, Federal Republic of Yugoslavia, and awaiting such a report,

Reaffirming its commitment to the sovereignty and territorial integrity of the Federal Republic of Yugoslavia,

Determining that the use of force by NATO against the Federal Republic of Yugoslavia constitutes a threat to international peace and security,

Acting under Chapters VII and VIII of the Charter,

1. Demands an immediate cessation of the use of force against the Federal Republic of Yugoslavia and urgent resumption of negotiations;

2. Decides to remain actively seized of the matter.

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Affirming that such unilateral use of force constitutes a flagrant violation of the United Nations Charter, in particular Articles 2 (4), 24, and 53…

Determining that the use of force by NATO against the Federal Republic of Yugoslavia constitutes a threat to international peace and security,

…

NATO's intervention in Kosovo (1999)

➔ **Independent International Commission on Kosovo: 'illegal, yet legitimate'**

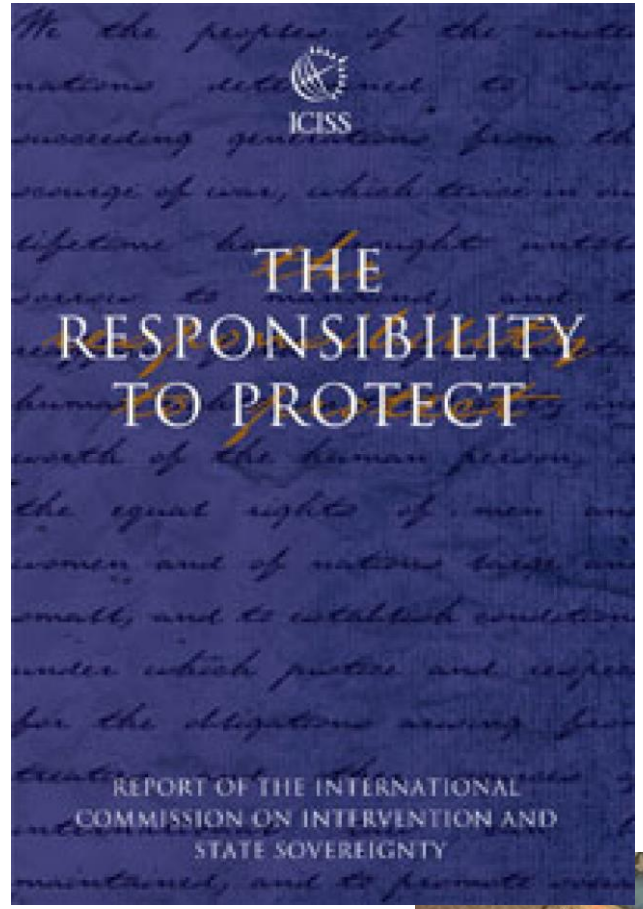
➔ **Contested among many non-participating states**



Security Council Adopts Resolution Authorizing Establishment of International Civil and Security Presence in Kosovo
Unique ID UN7664452

The Responsibility to Project (R2P)

- ✓ Dilemma: **protection of human rights *vs.* respect for the system of collective security** (and its regulation of use of force)
- ✓ International Commission on Intervention and State Sovereignty (ICISS) initiated by Canada in 2000
- ✓ Chaired by Gareth Evans (former Australian Minister of Foreign Affairs, pictured) and Mohamed Sahnoun
- ✓ Delivered its findings in its final report in December 2001
- ✓ Focus on a shift in language from a *right to intervene* to a ***responsibility to protect*** the victims
- ✓ Early reception was mixed





Key elements of R2P doctrine

➔ State sovereignty implies **responsibility for protecting own people**

➔ R2P tied to four **international crimes**, namely genocide, war crimes, ethnic cleansing and crimes against humanity

➔ International responsibility when state is **'unwilling or unable'** to halt or avert the serious harm to its population

International responsibility consists of

- ***The responsibility to prevent***
  address root causes.

- ***The responsibility to react***
  respond with appropriate measures (military force as last resort)

- ***The responsibility to rebuild***
  full assistance with recovery, reconstruction and reconciliation.

60/1. 2005 World Summit Outcome

Responsibility to protect populations from genocide, war crimes, ethnic cleansing and crimes against humanity

138. Each individual State has the responsibility to protect its populations from genocide, war crimes, ethnic cleansing and crimes against humanity. This responsibility entails the prevention of such crimes, including their incitement, through appropriate and necessary means. We accept that responsibility and will act in accordance with it. The international community should, as appropriate, encourage and help States to exercise this responsibility and support the United Nations in establishing an early warning capability.

139. The international community, through the United Nations, also has the responsibility to use appropriate diplomatic, humanitarian and other peaceful means, in accordance with Chapters VI and VIII of the Charter, to help to protect populations from genocide, war crimes, ethnic cleansing and crimes against humanity. In this context, we are prepared to take collective action, in a timely and decisive manner, through the Security Council, in accordance with the Charter, including Chapter VII, on a case-by-case basis and in cooperation with relevant regional organizations as appropriate, should peaceful means be inadequate and national authorities are manifestly failing to protect their populations from genocide, war crimes, ethnic cleansing and crimes against humanity. We stress the need for the General Assembly to continue consideration of the responsibility to protect populations from genocide, war crimes, ethnic cleansing and crimes against humanity and its implications, bearing in mind the principles of the Charter and international law. We also intend to commit ourselves, as necessary and appropriate, to helping States build capacity to protect their populations from genocide, war crimes, ethnic cleansing and crimes against humanity and to assisting those which are under stress before crises and conflicts break out.

R2P Pillars

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Three pillars of the R2P doctrine

First Pillar

Governments have primary duty to their populations – whether citizens or not – to protect them from genocide, war crimes, ethnic cleansing and crimes against humanity and their incitement

Second Pillar

Commitment of international community to assist states in meeting these obligations (e.g., capacity-building)

Third Pillar

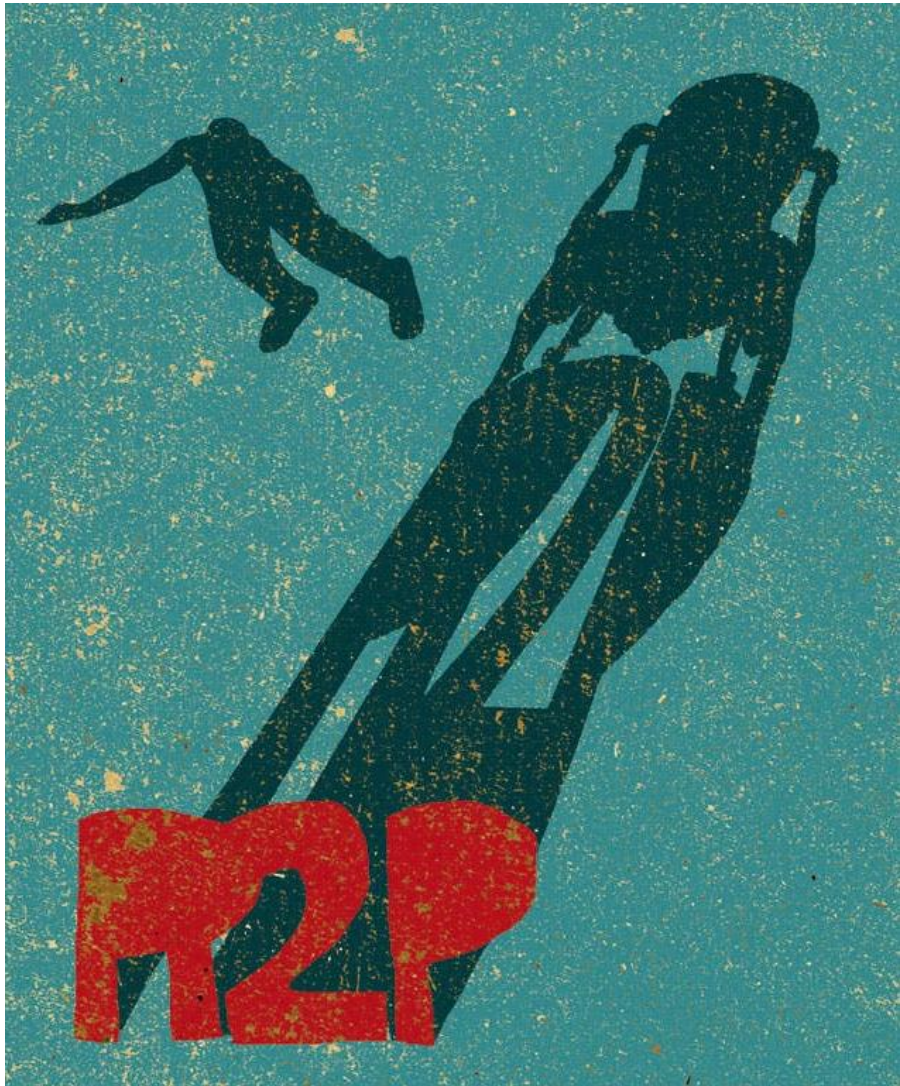
Responsibility to respond through the UN mechanisms

- ✓Controversial implementation in the context of use of force by NATO in Libya (2011), which led to the fall of Gaddafi ➔ criticism of forcible regime change

Critiques of R2P

- ✓Does not solve the problem of Security Council paralysis (World Summit outcome only asks P5 to ‘refrain’ from exercising veto in cases of the four international crimes)
- ✓Only ever selectively and inconsistently applied => double standards? (i.e., why not in Syria or Myanmar?)
- ✓Rhetoric creates unrealistic expectations
- ✓Susceptible to abuse by powerful states => ‘humanitarianism’ as a mask for powerful states’ self-interest and economic/political concerns
- ✓Return to a ‘just war doctrine’, i.e., return to moral assessments on the legitimacy of ‘war’ (while risking the current legal constraints)?

⇒ILA (2018): humanitarian intervention remains a ‘legal grey area’





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